

MELISSA LEITZKE v. CITY OF VALLEJO
Case No. CU23-02170

**Plaintiff's Motion to Compel Further Responses to Requests for
Production, Sets One and Two**

TENTATIVE RULING

Plaintiff MELISSA LEITZKE moves to compel Defendant CITY OF VALLEJO to further respond to her requests for production of documents, sets one and two.

The court finds Plaintiff made adequate efforts to meet and confer prior to filing this motion. Plaintiff's counsel's declaration shows that the parties met and conferred extensively concerning the document requests at issue; however, Defendant did not afford Plaintiff a further extension of her April 29, 2026 motion to compel deadline subsequent to Plaintiff's April 27, 2026 meet and confer letters. The instant motion was filed on April 29, 2026.

Defendant states in opposition to this motion that it has complied and produced the requested discovery. However, Plaintiff states in her reply brief that Defendant's document production remains incomplete in four ways:

- 1) Defendant has not reproduced all of its document production in native electronic storage format with metadata;
- 2) During meet and confer discussions Defendant agreed to provide Plaintiff a declaration concerning the custodians of records searched, search methodology used, date ranges, and litigation holds, but Defendant has provided such a declaration only with regard to its fire department records and not its human resources or city attorney records;
- 3) Defendant's privilege log does not include two pages of withheld documents; and
- 4) Defendant has not produced two pages of replies to Linda Daube's emails or the contents of text messages between Chief Long and Battalion Chief Hickey concerning Plaintiff.

Defendant's opposition provided no argument against production in full in compliance with the first, second, and third topics remaining in dispute. Concerning the fourth topic in dispute, Defendant's opposition argues that no relevant text messages remain unproduced; however, Long's testimony at deposition is confusing as to whether the text messages exist and were produced and Defendant's special interrogatory responses state that it searched employee email inboxes but not phone text message inboxes despite Long's testimony that his work phone (on which any responsive text conversation with Hickey would be found) was in Defendant's possession. Defendant's opposition does not argue against production of the replies to Linda Daube's emails. The declaration of Defendant's witness James Rustice states only that the fire department has produced all responsive records in its possession and does not account for Defendant's other relevant departments.

Defendant must further respond to address the four identified gaps remaining in its discovery responses.

The court finds that the circumstances weigh against the imposition of sanctions.

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant CITY OF VALLEJO moves for summary judgment, or in the alternative summary adjudication, against Plaintiff MELISSA LEITZKE's first amended complaint ("1AC") alleging retaliation, failure to prevent discrimination or harassment, and gender discrimination, all in violation of the Fair Housing and Employment Act (the "FEHA").

Summarized, Plaintiff alleges that she worked for Defendant as a firefighter for over twenty years, commencing in January 2000, was promoted to Engineer in 2012 and attained the rank of Captain in 2016. In her twenty-year career with the fire department she was never the subject of discipline. (UMF #7, 9; PSSMF #223-224, 227-228.)

In June 2022 Plaintiff alleges she responded to and helped extinguish the "Broadway Fire" in Vallejo. A civilian complaint from a reporter alleging that Plaintiff sprayed him with a firehose at the scene led to Plaintiff being investigated and demoted to Engineer. Chief Kyle Long demoted Plaintiff, despite investigative findings that she did not intentionally spray Keys with her firehose and a Skelly hearing officer recommending a lower level of discipline, because he lost confidence in her leadership. Following an arbitration, Plaintiff's discipline was reduced to written warning and she was reinstated to Captain.

Plaintiff contends she was punished unfairly on the basis of her gender and on the basis of having engaged in protected activity in the form of complaints about gender discrimination prior to the Broadway Fire and the demotion decision.¹

Legal Standard. A defendant may move for summary adjudication as to one or more causes of action within an action if the defendant contends that the cause of action has no merit and the motion will completely dispose of the cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit when one or more of its elements cannot be established or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (o).) A party may also move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty if the

¹ The 1AC filed on August 15, 2023, does not allege constructive discharge, nor does the complaint with the Civil Rights Department. (Exh. 113.) Plaintiff's declaration now contends she was constructively discharged in November 2024. (Leitzke Decl., ¶¶ 29-30.) In her deposition, Plaintiff acknowledged she in November 2024 had been off on sick leave for "a while" and submitted her resignation on November 10, 2024. (Leitzke Depo, 462:16-25; 464:3-5.)